

25CMCV02210 25CMCV02210

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-01

Motion: DEFENDANT COUNTY OF LOS ANGELES' (1) DEMURRER TO, AND; (2) MOTION TO STRIKE PORTIONS OF, PLAINTIFFS' SECOND AMENDED COMPLAINT DATE: September 1, 2026 TIME: 8:30 A.M.

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Case Number: 25CMCV02210 Hearing Date: September 1, 2026 Dept: E

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

SIMA KARAPETYAN, JAZMIN

CERVANTES, DESIREE ESCALANTE, ANTRENESHA WILLIAMS,

Plaintiffs,

vs.

COUNTY OF LOS ANGELES;

DEPUTY JONES; LOS ANGELES COUNTY SHERIFF'S DEPARTMENT and DOES 1 TO 20,
INCLUSIVE,

Defendants.

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CASE

NO: 25CMCV02210

[TENTATIVE] ORDER RE: DEFENDANT COUNTY OF
LOS ANGELES' (1) DEMURRER TO, AND; (2) MOTION TO STRIKE PORTIONS OF,
PLAINTIFFS' SECOND AMENDED COMPLAINT

DATE: September 1, 2026

TIME:

8:30 A.M.

DEPT.: E

Moving Party: Defendant

County of Los Angeles

Responding Party: None

Notice: Ok

Tentative Ruling: (1)

Defendant County of Los Angeles'

Demurrers to Plaintiffs' Second Amended Complaint are SUSTAINED WITHOUT LEAVE TO AMEND; and

(2)

Defendant County of Los Angeles' Motion to Strike Portions of Plaintiffs' Second Amended Complaint is GRANTED IN PART.

I.

BACKGROUND

This is an action for sexual assault and battery, sexual harassment, negligent hiring and supervision and retaliation. Plaintiffs Simar Karapetyan ("Karapetyan"), Jazmin Cervantes ("Cervantes"), Desiree Escalante ("Escalante"), and Antrenesha Williams ("Williams") (collectively, the "Plaintiffs") allege that they were each inmates at Century Regional Detention Facility in Lynwood, California and during their incarceration Defendant Deputy Jones ("Jones") sexually abused and harassed each of them while working in his capacity as an employee of the Los Angeles County Sheriff's Department.

On December 31, 2025, Plaintiffs filed their initial Complaint against Jones, the County of Los Angeles (the "County"), the Los Angeles County Sheriff's Department, and Does 1 to 20, inclusive, asserting causes of action for: (1) Bane Act, Cal. Civil Code § 52.1; (2) Sexual Assault and Battery § 1708, 1708.5; (3) Sexual Harassment § 51.9; (4) Gender Violence § 52.4; (5) Negligence and Negligent Hiring/Employment and Supervision; (6) Retaliation; and (7) Violation of 42 U.S.C. § 1983.

Pursuant to a stipulation between the parties, Plaintiffs filed their operative Second Amended Complaint (the SAC) on August 12, 2026^[1] against the same Defendants as their initial Complaint and asserting causes of action for: (1) Bane Act, Cal. Civil Code § 52.1; (2) Sexual Assault and Battery § 1708, 1708.5; (3) Sexual Harassment § 51.9; (4) Gender Violence § 52.4; (5) Negligence and Negligent Hiring/Employment and Supervision; and (6) Retaliation.

On June 8, 2026, the County filed the instant: (1) Demurrer to Plaintiff's Second Amended Complaint, and (2) Motion to Strike Portions of Plaintiffs' Second

Amended Complaint.

As of August 29, 2026, no Opposition or Reply have been filed. Pursuant to Code Civ. Proc. § 1005(b), all papers opposing a noticed motion must be filed with the court and served on all other parties “at least nine court days ... before the hearing” and all reply papers at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any opposition or reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal
Standards

1.

Demurrer

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. § 430.10(e).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although

courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (*Rakestraw v. California Physicians' Serv.* (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (*Ibid.*)

2.

Motion to Strike

Any party, within the time allowed

to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435(b)(1).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. §§ 436(a) and (b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782.)

The grounds for moving to strike

must appear on the face of the pleadings or by way of judicial notice. (Code Civ. Proc. § 437.) Accordingly, the Court does not consider any extrinsic evidence, including that contained in affidavits, declarations, or deposition transcripts concurrently filed with the moving or opposing papers. (See *Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 21.)

In ruling on a motion to strike, the

allegations in the complaint are considered in context and presumed to be true:

"[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court (Pedus Services, Inc.)* (1998) 67 Cal.App.4th 1253, 1255.)

B.

Meet and

Confer

Before

filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41(a).)

The

County attaches the declaration of counsel Blessing O. Ekpezu (“Ekpezu”), who attests that on June 1, 2026 the County sent a meet and confer email to Plaintiffs’ counsel identifying the specific causes of action to which the County planned to demur and the legal bases for the County’s demurrers. (Ekpezu Decl., ¶ 8.) In the June 1, 2026 letter, Ekpezu also requested counsel’s availability for a telephonic conference but did not receive a response. (Id.)

The

Court finds that the County has not met its statutory meet and confer requirement. As the demurring party, the County is required to meet and confer “in person, by telephone, or by video conference.” (Code Civ. Proc. §430.41(a).) An email does not suffice and waiting for a response to an email invitation to a teleconference does not suffice. Although the Court proceeds with its analysis of the County’s demurrer, Counsel is cautioned to abide by the requirements of the Code of Civil Procedure in moving forward.

C.

Discussion

1.

Demurrer

The County demurs to Plaintiffs’ Second through Sixth Causes of Action on the ground that each is precluded by the immunity granted to the County pursuant to Government Code § 844.6(a)(2). The County additionally demurs to Plaintiffs’ Third Cause of Action on the ground that Civil Code § 51.9 does not create liability in this instance and to Plaintiff’s Fifth Cause of Action because there is no statutory basis for liability. Finally, the County also demurs to

Plaintiffs' Sixth Cause of Action alleging that the Fair Employment and housing Act ("FEHA") does not govern the relationship between inmates and the County.

i.

Statutory

Immunity Pursuant to Government Code § 844.6

Pursuant to Gov. Code § 815(a), "a public entity is not liable for any injury," except as otherwise provided by statute. (Id.; see also *Towery v. State of California* (2017) 14 Cal.App.5th 226 (Pursuant to the statutory framework of the California Tort Claims Act, sovereign immunity is the rule, and public entities are only liable where a statute specifically declares them to be liable).)

As related to prisoners, and subject to only the specified exemptions, Government Code § 844.6 precludes public entity liability for injury caused by, or any injury to, a prisoner. Section 844.6[2] provides, in pertinent part:

(a) Notwithstanding any other provision of this part, except as provided in this section and in Sections 814, 814.2, 845.4, and 845.6, or in Title 2.1 (commencing with Section 3500) of Part 3 of the Penal Code, a public entity is not liable for:

(1) An injury proximately caused by any prisoner.

(2) An injury to any prisoner.

(b) Nothing in this section affects the liability of a public entity under Article 1 (commencing with Section 17000) of Chapter 1 of Division 9 of the Vehicle Code.

(c) Except for an injury to a prisoner, nothing in this section prevents recovery from the public entity for an injury resulting from the dangerous condition of public property under Chapter 2 (commencing with Section 830) of this part.

(Gov't Code § 844.6(a) – (c)(emphasis added).)

(1)

The County is a Public Entity and Plaintiffs
are/were Prisoners

Pursuant to the Tort Claims Act, a
“public entity” is broadly defined to include “the state, the Regents of the
University of California, the Trustees of the California State University and
the California State University, a county, city, district, public authority,
public agency, and any other political subdivision or public corporation in the
State.” (Gov’t Code § 811.2.) And a
“prisoner” is defined to include “an inmate of a prison, jail, or penal or
correctional facility.” (Id., §
844.)

Defendant the County is alleged to
be “a municipal corporation and public entity duly organized under the laws of
the State of California.” (SAC ¶ 6.) As
to Plaintiffs’ each is alleged to have been “in direct custody, care
supervision [sic], and control of Defendant County, Defendant Sheriff’s Department,
Defendant Jones and Does 1-20, inclusive, due to their confinement at Century
Regional Detention Facility. Plaintiffs’
confinement at this prison was due to their forced detainment at the facility.
(Id., ¶ 30.)

In accordance with the allegations
of the SAC, the County is alleged to be a public entity and Plaintiffs are each
alleged to be prisoners within the definitions set forth by Section 844.6. As
such, Section 844.6 applies to Plaintiffs’ SAC and each cause of action set
forth therein must fall within an exception to Section 844.6 to survive
demurrer.[3]

(2)

Plaintiffs’ Second through Sixth Causes of
Action

Plaintiff’s Second through Sixth
Causes of Action are as follows: (2)
Sexual Assault and Battery § 1708, 1708.5; (3) Sexual Harassment § 51.9; (4)
Gender Violence § 52.4; (5) Negligence and Negligent Hiring/Employment and
Supervision; and (6) Retaliation.

As is

noted above, subject to limited exceptions, Section 844.6 immunizes the County from injury to a prisoner. The statutory language unambiguously provides: "except as provided . . . in Sections 814 [contract], 814.2 [workers' compensation], 845.4 [interference with a prisoner's right to judicial review of his or her confinement], and 845.6 [failure to provide medical care to an injured prisoner], a public entity is not liable for . . . [a]n injury to any prisoner." (Gov't Code § 844.6(a)(2).) The statutory language goes on to exempt liability imposed upon a public entity for: (1) death or injury proximately caused by a negligent or wrongful act or omission in the operation of any motor vehicle by an employee of a public entity acting within the scope of his employment; and (2) injury resulting from the dangerous condition of public property. (Id., § 844.6(b), (c).)

None of Plaintiffs' Second through

Sixth Causes of Action fall within an enumerated exception to the immunity granted to the County pursuant to Section 844.6. Plaintiffs do not assert injury by result of a contract, a workers' compensation claim, interference with judicial review of confinement, or failure to provide medical care. Furthermore, Plaintiffs do not assert injury by way of a motor vehicle accident or as a result of dangerous condition of public property. In short, each of Plaintiffs' Second through Sixth Causes of Action are causes of action for which the County has been granted statutory immunity.

The County's Demurrers to

Plaintiffs' Second through Sixth Causes of Action are SUSTAINED. Plaintiffs have not opposed the County's Demurrers and therefore have not set forth any means by which they might amend their SAC to set forth viable causes of action.

Accordingly, the County's Demurrers to Plaintiffs Second through Sixth Causes of Action are SUSTAINED WITHOUT LEAVE TO AMEND.[4]

2.

Motion to
Strike

The County moves to strike 9 items

from Plaintiffs' SAC, arguing that the identified provisions are either irrelevant and improper (items 1-2) or barred by statute (items 3-9.) Plaintiffs have not filed an opposition.

i.

Government Code § 818

“Notwithstanding any other provision of law, a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant.” (Gov’t Code § 818.) Section 818 has been interpreted expansively to preclude an award of damages against a public entity to include both “damages under Civil Code section 3294 and damages that function, in essence, as punitive or exemplary damages.” (Los Angeles Unified School Dist. v. Superior Court (2023) 14 Cal.5th 758, 777.)

The Court finds the County’s argument persuasive. Pursuant to Section 818, Plaintiffs’ allegations as to punitive damages against the County are not drawn in conformity with California law and are properly subject to the County’s Motion to Strike. In the absence of any opposition from Plaintiffs discussing the possible application of the identified language to the named individual Defendant, the Court GRANTS the County’s Motion to Strike of the ground that it is immunized from punitive damages pursuant to Section 818 and orders the following language struck from the SAC:

a)

Item

3: SAC ¶ 46 in its entirety;

b)

Item

4: SAC ¶ 66 in its entirety;

c)

Item

5: SAC ¶ 88 in its entirety;

d)

Item

6: SAC ¶ 89 (“(b) punitive damages.”)

e)

Item

7: SAC ¶ 90 in its entirety;

f)

Item

8: SAC ¶ 109 in its entirety; and

g)

Item

9: Paragraph 3 of the SAC's Prayer ("For punitive and exemplary damages in an amount according to proof at trial.")

ii.

California Department of Corrections and
Rehabilitation ("CDCR") Operations Manual Allegations

Citing to paragraphs 6-7 of the SAC,
the County argues that "the Century Regional Detention Facility is a county jail operated by the Los Angeles County Sheriff's Department." (Mot., p. 6:13-14.) The County argues that the CDCR Operations

Manual is inapplicable to operations at the Century Regional Detention Facility because the Facility is not a state prison and not under the jurisdiction of CDCR; the Operations Manual therefore "governs CDCR facilities including state prisons, community correctional facilities, conservation camps, and parole, not county jails." (Id., p. 6:14-17.)

The County does not set forth any
factual basis that can be ascertained from the face of the SAC or from applicable law that the CDCR is not applicable to the Century Regional Detention Facility. The assertion that the Facility is not under the jurisdiction of the California Department of Corrections and Rehabilitation is made without citation to any supporting factual allegation or law.

Likewise, the assertion that the Operations Manual does not cover the Facility is made without citation to any supporting factual allegation or law. In the absence of a properly
substantiated argument, the County's Motion to Strike Plaintiffs' allegations premised upon the Operations Manual is DENIED.

III.

CONCLUSION

The County's Demurrer to Plaintiffs'

SAC is SUSTAINED IN ITS ENTIRETY WITHOUT LEAVE TO AMEND.

The County's Motion to Strike

Portions of Plaintiffs' SAC is GRANTED IN PART.

The County is ordered to file its

Answer no later than October 2, 2026.

Jury Trial is scheduled for 4/17/2028

at 09:30 AM in Department E at Compton Courthouse.

Final Status Conference is scheduled

for 4/7/2028 at 09:00AM in Department E at Compton Courthouse.

Post-Mediation Status Conference is

scheduled for 3/17/2028 at 8:30 AM in Department E at Compton Courthouse.

Any party seeking a jury must post

jury fees by 11/30/2026, if they have not already done so. If jury fees are not timely posted, jury shall be deemed waived by the party who fails to post.

The parties are required to appear

in person at the Final Status Conference.

The parties are directed to view and

follow the instructions contained in the two memos on the Court's website

(<https://www.lacourt.or/courtroominformation/COM/E>) regarding instructions on how to prepare for trial in

Department E.

Moving Party to give notice.

[1] As will be seen, Plaintiffs' SAC

is filed after the County's Demurrer. The parties stipulated to Plaintiffs

filing the SAC and it appears the SAC was served but never properly filed with

the Court. (See Joint Stipulation for Leave to File Second Amended Complaint,

filed 5/5/26.) Upon realizing that the SAC had not been properly filed, the

Court continued the County's Demurrer to the SAC and ordered Plaintiff to file

a copy of the SAC. (See Minute Order, 8/12/26.)

[2] Unspecified Section references are to the Government Code.

[3] In their SAC, Plaintiffs allege that Section 815.2(a), which states that “a public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative” allows for their causes of action to proceed. (Gov’t Code § 815.2(a); see SAC ¶ 16.) That is incorrect. “Although a public entity may be vicariously liable for the acts and omissions of its employees (Gov. Code, § 815.2), that rule does not apply in the case of injuries to prisoners.” (Lawson v. Superior Court (2010) 180 Cal.App.4th 1372, 1383 (emphasis in original).)

[4] Because the County’s Demurrers premised upon Section 844.6 are sustained without leave to amend, the Court does not reach the County’s other grounds for demurrer.